

****October 16, 2024****

****Sanction for Violation of GDPR****

The National Supervisory Authority has completed an investigation into the operator Your Consulting SRL and has found a violation of the provisions of Article 25 paragraph (1), Article 32 paragraph (1) letters a), b), and d), and Article 32 paragraph (2) of Regulation (EU) 2016/679.

As such, the operator Your Consulting SRL has been sanctioned with a fine in the amount of 14,929.20 lei (equivalent to 3,000 EURO).

The investigation was initiated following a complaint indicating that certain personal data had been disclosed through the operator's application <https://your-scim.herokuapp.com>.

During the investigation, it was found that the operator had not implemented appropriate technical and organizational measures at the time of establishing the means of processing or at the time of processing itself and had not conducted testing, evaluation, and periodic assessment of the effectiveness of the technical and organizational measures to ensure the security of processing.

This situation led to unauthorized access to personal data (name and surname, personal identification number, the number of vacation vouchers distributed by name, the total nominal value of the vacation vouchers, the date of return from parental leave), of certain individuals, during the period of March - April 2024.

In this context, the operator Your Consulting SRL was fined for violating the provisions of Article 25 paragraph (1), Article 32 paragraph (1) letters a), b), and d), and Article 32 paragraph (2) of Regulation (EU) 2016/679.

At the same time, under the provisions of Article 58 paragraph (2) of Regulation (EU) 2016/679, a corrective measure was also ordered to implement a mechanism for testing, evaluating, and periodically assessing the effectiveness of the measures adopted, considering the risk presented by processing, in order to ensure an appropriate level of security and to avoid similar security incidents in the future.

****Legal and Communication Department****

****N.S.A.P.D.C.P****